

Stereo.HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

....
Writ Petition No.11192 of 2015

GHULAM FAREED

Versus

DELIMITATION AUTHORITY D.G. KHAN DIVISION, D.G.
KHAN and 4 others

JUDGMENT

Date of hearing: 20.08.2015

Petitioners by: M/s Tahir Mehmood, Mian
Abbas Ahmad, Abdul Rehman
Khan Laskani, Muhammad
Maalik Khan Langha, Malik
Muhammad Fiaz Mohana,
Advocates.

Respondents by: Mr. Muhammad Naveed Rana,
Standing Counsel for the
respondents No.1 to 3 alongwith
Sh. Zahid Iqbal District Election
Commissioner Muzaffargarh.

MIRZA VIQAS RAUF, J. This single judgment shall
decide the instant petition as well as the following identical
Writ Petitions :-

Sr. #	Writ Petition #	Title
1.	Writ Petition No.11207 of 2015	Ch. Rasheed Ahmad versus Election Commission of Pakistan through its Secretary, Islamabad and 6 others
2.	Writ Petition No.11332 of 2015	Muhammad Asmat Masood versus Delimitation Authority D.G. Khan Division, D.G. Khan and another
3.	Writ Petition No.11470 of 2015	Aftab Ali and another versus Secretary Local Govt. & Community Development Punjab, Lahore and 4 others

4.	Writ Petition No.11517 of 2015	Dilbar Hussain versus Election Commission of Pakistan through its Secretary, Islamabad and 3 others
5.	Writ Petition No.11519 of 2015	Bagh Ali versus Election Commission of Pakistan through its Secretary, Islamabad and 3 others
6.	Writ Petition No.11588 of 2015	Ghulam Shabbir versus Delimitation Authority D.G. Khan Division, D.G. Khan and 3 others
7.	Writ Petition No.11616 of 2015	Saif Ullah versus Delimitation Officer, Dera Ghazi Khan Division, Dera Ghazi Khan and 4 others
8.	Writ Petition No.11628 of 2015	Muhammad Fayyaz versus Delimitation Authority, Dera Ghazi Khan Division and another
9.	Writ Petition No.11629 of 2015	Malik Muhammad Javed versus Delimitation Authority and another
10.	Writ Petition No.11630 of 2015	Zafar Iqbal versus Delimitation Authority, Dera Ghazi Khan Division and another
11.	Writ Petition No.11641 of 2015	Jahangir Badar versus Delimitation Authority, D.G. Khan Division, D.G. Khan and another
12.	Writ Petition No.11772 of 2015	Malik Atta Ullah versus Election Commission of Pakistan through its Secretary, Islamabad and 4 others
13.	Writ Petition No.12112 of 2015	Murid Hussain Khan Gopang versus Election Commission of Pakistan through its Secretary, Islamabad and 3 others
14.	Writ Petition No.12113 of 2015	Imdad Ullah versus Election Commission of Pakistan through its Secretary, Islamabad and 3 others
15.	Writ Petition No.12114 of 2015	Muhammad Bilal versus Election Commission of Pakistan through its Secretary, Islamabad and 3 others
16.	Writ Petition No.12115 of 2015	Aamir Bashir Khan and another versus Election Commission of Pakistan through its Secretary, Islamabad and 3 others

As there is similarity of questions of facts and law in all these petitions.

2. Precisely the facts necessary for adjudication of all the petitions are that the Delimitation Officer/District Election Commissioner, Muzaffargarh after conducting delimitation process issued preliminary list of the constituencies falling within the limits of District Muzaffargarh. Feeling dissatisfied from the process, objections were preferred by the inhabitants of the constituencies delimitized, who are now before the Court

mostly as petitioners as well as respondents. In most of the cases, the objections filed by the petitioners have been dismissed whereas in the other, the objections were allowed by the Delimitation Authority by way of orders impugned herein.

3. Learned counsels representing the petitioners in all these petitions are mainly aggrieved from the impugned orders dated 23rd of July, 2015 on account of the fact that while conducting the delimitation process, the Delimitation Officer ignored the mandatory provisions of The Delimitation of Constituencies Act, 1974, the rules framed thereunder as well as The Punjab Local Government Act, 2013. It is contended by the learned counsels for the petitioners that the Delimitation Authority, while adjudicating the objections filed before it has completely ignored its mandate and passed the impugned orders in a mechanical manner. Learned counsels in support of their contentions also referred the instructions for the delimitation of union councils and wards issued by the Election Commission of Pakistan under The Delimitation of Constituencies Act, 1974. A great emphasis has been laid down by the learned counsels for the petitioners that the orders of the Delimitation Authority lack any reasoning and the same are non-speaking orders which are not tenable under the law.

4. The official respondents were directed to file report and parawise comments which have been accordingly submitted. Learned Standing Counsel on the strength comments submitted by the official respondents as well as the learned counsels appearing on behalf of private respondents endeavored to defend the impugned orders with hilt.

5. I have heard both the sides and also perused the record with their assistance.

6. In order to properly appreciate the controversy involved in the instant petitions, it would be advantageous to first have a recourse to the relevant and guiding provisions of law governing the subject. Part VIII of Chapter 1 of The Constitution of The Islamic Republic of Pakistan, 1973 (hereinafter referred as “The Constitution”) provides the establishment of office of Chief Election Commissioner and Election Commission. Article 218 of “The Constitution” bestows a duty upon the Election Commission to organize election for both Houses of Majlis-e-Shoora (Parliament), Provincial Assemblies and for election to such other public officers as may be specified by law. Whereas Article 219 of “The Constitution” casts certain duties upon the Commissioner, enumerated therein. Chapter 2 of Part VIII of “The Constitution” relates to electoral laws and conduct of election whereas Article 222 gives a mandate to the Majlis-e-Shoora (Parliament) to make election laws for the matters mentioned therein. The same is reproduced below :-

“222. Election Laws. Subject to the Constitution, [Majlis-e-Shoora (Parliament)] may by law provide for—

(a) the allocation of seats in the National Assembly as required by clauses (3) and (4) of Article 51;

(b) the delimitation of constituencies by the Election Commission;

(c) the preparation of electoral rolls, the requirements as to residence in a constituency, the determination of objections pertaining to and the commencement of electoral rolls;

(d) the conduct of elections and election petitions; the decision of doubts and disputes arising in connection with elections;

(e) matters relating to corrupt practices and other offences in connection with elections; and

(f) all other matters necessary for the due constitution of the two Houses and the Provincial Assemblies;

but no such law shall have the effect of taking away or abridging any of the powers of the Commissioner or an Election Commission under this Part.”

The Parliament in furtherance of Article 222 of “The Constitution” in order to provide for the delimitation of the constituencies for elections to the National Assembly and the Provincial Assemblies and for matters connected therewith or ancillary thereto promulgated The Delimitation of Constituencies Act (XXXIV of 1974) which was later on amended by The Delimitation of Constituencies (Amendment) Act, 2012. For the purpose of holding election of the Local Governments, the legislature by way of Chapter II of The Punjab Local Government Act, 2013 provided a mechanism and Section 8 of the said Act deals with the issue of delimitation of union councils whereas Section 9 of the Act *ibid* deals with the delimitation of wards and municipal committees. Since at present, the issue involved in the instant petitions relates to the delimitation of the union councils and the wards in the municipal committees, so for the said purpose both the above referred sections are relevant. It is however noteworthy that neither Section 8 nor Section 9 of The Punjab Local Government Act, 2013 covers all the eventualities ensuing from the delimitation process. The said sections neither provided any forum for the resolution of disputes

arising from the said process nor these give a guideline for the resolution of issues arising there from.

7. The Election Commission of Pakistan in order to fill the gap issued instructions for delimitation of union councils and wards in terms of The Delimitation of Constituencies Act, 1974, the rules made thereunder and The Punjab Local Government Act, 2013. Part 2 of Chapter II of the said instructions lays down the principles of delimitation of constituencies with regard to union councils and wards which are to be observed by the Delimitation Officer at the time of delimitation of the constituencies. For the matter in hand Part III Chapter I of the said instructions is of great import which deals with the filing of objections/representations. In terms of item No.27, any person who is listed as a voter in the union council or ward is entitled to prefer an objection or make a representation within fifteen days from the expiry of the publication period before the concerned Delimitation Authority relating to the delimitation of union council and ward concerned either personally or through duly authorized agent. Chapter II of Part 3 prescribes responsibilities of the Delimitation Authorities. Item No.37 casts a duty upon the Delimitation Authority to hold an inquiry, summon witnesses and record evidence for the purpose of deciding the objections preferred before it. When the impugned orders are seen in this context it becomes evident that the Delimitation Authority did not advert at all to these basic requirements, while deciding the objection petitions/representations. The orders passed by the Delimitation Authority seem to be in oblivion of the mandatory provisions of law. It is also observed with concern that the impugned orders even lack any lawful reasoning for the

acceptance or rejection of the objections. The Authority vested in the Delimitation Authority has a mandate of law which oozes from the Constitutional mandate and it is expected that any order passed by the Authority in exercise of such powers would carry reasoning and must be speaking one. Section 24-A of The General Act, 1897 bound down even the executive to assign reasoning and pass a speaking order, while determining the rights of the parties. Guidance in this respect can be sought from ***“GOVERNMENT OF PAKISTAN through Director-General, Ministry of Interior, Islamabad and others versus FARHEEN RASHID” (2011 SCMR 1)***, ***“Messers UNITED WOLLEN MILLS LTD. WORKERS’ UNION versus Messers UNITED WOLLEN MILLS LTD” (2010 SCMR 1475)*** and ***“FASIH-UD-DIN KHAN and others versus GOVERNMENT OF PUNJAB and others” (2010 SCMR 1778)***. While keeping in mind the principles laid down in the judgments supra there can be no second opinion that the Delimitation Authority did not adhere to these principles while deciding the objections. The impugned orders even offend the provisions contained in Article 10-A of “The Constitution”.

8. For the foregoing reasons, I am persuaded to **allow** all the petitions while declaring the impugned orders dated 23rd of July, 2015 passed by the Delimitation Authority as illegal and unlawful, being violative of the law. As a consequence thereof, all the objections filed by the parties resulted into filing all these petitions shall be deemed to be pending before the Delimitation Authority, who shall re-adjudicate the same in the light of above observations by providing opportunity of hearing to all the concerned, strictly in accordance with law by way of speaking order. The parties are directed to appear

before the District Election Commissioner, Muzaffargarh on 26th of August, 2015 who shall take all necessary steps for further proceedings in the matter in accordance with law.

(MIRZA VIQAS RAUF)
JUDGE

*Shahbaz Ali**

APPROVED FOR REPORTING